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****Procedure No.**** EXP202316737 (PS/00110/2024)

****RESOLUTION OF THE SANCTIONING PROCEDURE****

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

****BACKGROUND****

****FIRST:**** On 24/10/23, Mr. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity NUDE PROJECT, S.L. with CIF: B01945328 (the defendant), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states that on 23/09/23, he visited a store of the defendant to make a purchase and that, when requesting the corresponding purchase receipt, he was informed that it could not be provided in physical form, and he was required to provide his email address or phone number, being obliged to provide such data to receive the corresponding proof of purchase. He also notes that when entering this data on a Tablet in the establishment, at no time did any message or form appear where he could object to receiving advertising. Nevertheless, he has received up to three advertising emails from the defendant's entity without having authorized it.

Along with the complaint, the following documentation is attached:

- Dated 23/09/23, 28/09/23, and 01/10/23, copies of the emails sent from the address NUDE PROJECT received by the complainant, containing advertising messages and photographs, such as, for example:

- o NUDE PROJECT© Thank you for your purchase! ¡Visit Our store. Order summary ...
- o NUDE PROJECT© NEW IN T-SHIRTS HOODIES BOTTOMS
- o By Artists, For Artists...
- o So, let's play who's who... you choose. Also, we have some last units of new Playboy garments. Have a look. JACK HAB LOW...
- o PLAYBOY CARDIGAN PLAYMATE SHIRT PLAYBOY CHINO PANTS SHOP THE LOOK DRAKE...
- o CHESS KNITTED POLO POOL DENIM PANTS CHAMPAGNE PROBLEMS HAT NAVY SHOP THE LOOK RIHAN NA...
- o WOMEN RACING JACKET BIG HEART WHITE BABY BUNNY BOWLING BAG WHITE/NAVY SHOP THE LOOK LIL NAS X...
- o FUTURE MILF HOOD BLACK MILF TEE PINK PLAYBOY STRASS CHOKER SHOP THE LOOK TYLER THE CREATOR...
- o Grandma found love in Milano and it ain't no man... She fell in love with the new basics 23' hoodies + polos + crewnecks Now live SHOP THE LOOK...

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In each of the received emails, there is the following message, in English: Do you no longer want to receive these emails? Unsubscribe.

NUDE PROJECT CIPujadas. 81 Barcelona. Barcelona 08005)

****SECOND:**** On 22/11/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the defendant for analysis and to report back within one month on the matters raised in the complaint.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), through electronic notification, with access to the content of the notification occurring on 01/12/23 as recorded in the file. No response has been received to this notification.

****THIRD:**** On 24/01/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by

the complainant was admitted for processing.

****FOURTH:**** On 12/03/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity NUDE PROJECT, S.L., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of the same regulation. In the opening agreement, it was determined that the sanction that could correspond, given the existing evidence at the time of opening, would amount to a total of 20,000 euros (twenty thousand euros).

****FIFTH:**** The aforementioned opening agreement was notified in accordance with the rules established in the LPACAP, and the defendant submitted a written statement on 27/03/24, in which the following is stated:

"First.- First of all, we must indicate that the statement of facts does not reflect the reality of what happened. This party has the advice in matters of privacy, personal data protection, and electronic commerce, so it is aware of the obligation set forth in the aforementioned article to obtain express consent, or that it had been requested by the recipient of the same, to allow the sending of advertising communications by email or equivalent means.

The company I represent has been able to verify that the complainant indeed made a purchase at the company's store located in La Roca Village on September 23, 2023, at 5 PM. However, this entity must indicate that consent was obtained from its customers to send them commercial communications, and furthermore, there are a series of measures implemented by default to avoid sending communications to those customers who have not requested them or whose consent has not been expressly obtained.

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At the moment the payment is made, the cashier informs the person that, in accordance with the commitment to eliminate paper, the receipt is preferably delivered electronically via email.

However, it is not true that the option to receive a physical receipt was not provided, nor that there was no message or form on the establishment's Tablet to oppose receiving advertising.

Attached as DOCUMENT No. 2 is a screenshot of the Tablet where it can be seen in the "customer options" section a first tab labeled "accept advertising," which, as can be observed, is unchecked by default. At that moment, all customers are expressly asked if they wish to accept the sending of advertising before opening that tab, which occurred in this case.

That is to say, the complainant expressly accepted the sending of advertising, as they were interested in receiving information about other products of the brand that would be marketed later.

Attached as DOCUMENT No. 3 is a screenshot of the final purchase where it can be seen that the customer subscribed to said advertising via email to be sent to the address ***EMAIL.

If we observe the screenshot of Document No. 2, various conclusions can be drawn: First, we can see that the box for commercial communications via email has been checked because the user accepted that option during the purchase. Similarly, it can be observed that consent was not granted to receive communications via SMS, which can be framed as another means of electronic communication equivalent to emails, according to Article 21 of the LSSI.

In this regard, and following the client's instructions, all commercial communications were sent via email, for which consent was obtained from the client. Additionally, it can be observed that it was indicated that notifications would be received in English.

Nude Project, S.L. never sends advertising to individuals who have not given their express consent to such sending through their subscription.

Once Mr. A.A.A. had subscribed, it is true that Nude Project, S.L. sent the emails detailed in the initiation agreement of the sanctioning file. However, we must note that the client was fully aware that they could unsubscribe, as this is stated in each email sent. In fact, the complainant unsubscribed on December 20, 2023, at 8:57 AM, simply by clicking on the link they received in the emails under the word "unsubscribe."

Proof of this unsubscription is provided as DOCUMENT No. 4. Therefore, it is surprising that if they did not wish to receive emails, they could have...

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the subscription was canceled upon receiving the first on the same day of purchase, September 23, or the second a few days later (September 28).

We emphasize that from the moment the subscription was canceled, Nude Project, S.L. has not sent any further commercial communications. In summary, we believe that Nude Project, S.L. has acted correctly, fulfilling the mandates of its client, both in sending commercial communications and in canceling the subscription; all in strict compliance with the provisions of current legislation.

Second.- In any case and in a subsidiary manner, we understand that the actions of Nude Project, S.L. will be protected by the second paragraph of Article 21 of Law 34/2002 on Information Society Services and Electronic Commerce. This regulation establishes that:

1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not been previously requested or expressly authorized by the recipients is prohibited.
2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially contracted.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them. When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited. We have underlined the second paragraph of this article since it establishes that the first paragraph (prohibition of sending advertising communications) does not apply when the following requirements are met:

- There is a prior contractual relationship.
- The provider has lawfully obtained the customer's contact details.
- The provider uses such data to send commercial communications regarding products or services of its own company similar to those that were the subject of the contract.

The actions of Nude Project, S.L. are protected by the second paragraph of the aforementioned article because:

- 1) The complainant Mr. A.A.A. contracted with Nude Project, S.L. for the purchase of a product (varsity sweatshirt) on September 23, 2023.
- 2) Nude Project, S.L. lawfully obtained the customer's details as the latter voluntarily provided them, requesting the sending of the purchase receipt by email.
- 3) Nude Project, S.L. sent commercial communications to its customer, now the complainant, through C/ Jorge Juan, 6

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emails informing about products similar to those purchased by Mr. A.A.A. 4) Nude Project, S.L. provided the customer with the opportunity to unsubscribe in every email sent, simply by clicking a link. 5) Nude Project, S.L. did not send a single email to the complainant after he expressed his desire to no longer receive commercial communications.

Third.- The sending of the purchase receipt via email is covered by Royal Decree 1619/2012 of November 30, which approves the Regulation governing invoicing obligations. Specifically, Article 8 details that invoices may be issued by any means, in paper or electronic format, while Article 9

endorses invoices that are issued and received in electronic format.

Fourth.- In terms of sanctions, the Constitutional Court has established as one of the basic pillars for the interpretation of administrative sanctioning law that the basic principles and guarantees present in criminal law are applicable, with certain nuances, in the exercise of any sanctioning power of the Public Administration (as evidenced, for example, in the Judgments of the Constitutional Court 76/1990, 120/1994, 154/1994, 23/1995, 97/1995, 147/1995, 45/1997 of April 26, among many others). Article 25.1 of the Constitution establishes that no one can be condemned or sanctioned for actions or omissions that at the time of their occurrence do not constitute a crime, misdemeanor, or administrative infraction according to the legislation in force at that time. The Constitutional Court has maintained that the principle of legality consists of the need for normative predetermination of infringing behaviors and the corresponding sanctions (SSTC 61/1990, 116/1993, 151/1997, 124/2000, 113/2002, 129/2003, 297/2005, 129/2006, etc.).

In the same vein, Article 27 of Law 40/2015 on the Legal Regime of the Public Sector defines the principle of legality in the same terms, stating that only violations of the legal order that are foreseen as such by a law can constitute administrative infractions.

In the present case, a sanctioning procedure is initiated and a sanction is proposed against Nude Project, S.L. for allegedly violating Article 38.4.d) of Law 34/2002 on Information Society Services and Electronic Commerce, which qualifies as a minor infraction "the sending of commercial communications by email or other equivalent electronic communication means, when such communications do not meet the requirements established in Article 21 and do not constitute a serious infraction."

Given that, as we have seen, the actions of Nude Project, S.L. are covered by the second paragraph of Article 21, the imposition of a sanction would constitute a violation of the principle of legality that governs all administrative sanctioning procedures. In the Judgments of the National Court (February 5, 2019 EDJ 2019/543106, March 25, 2016 EDJ 2016/66100, February 4, 2010 EDJ 2010/12007, May 23, 2007 EDJ 2007/76092) from the C/ Jorge Juan, 6

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We are aware that similar cases have occurred, and sanctions are only validated in those instances where the affected parties received emails after expressly stating their opposition to receiving them. In the present case, the situation is completely different. The complainant not only gave their express authorization to receive commercial communications but could have responded to the first communication received indicating that they did not wish to receive any further messages. They could have done this in several ways:

- By clicking on the designated "unsubscribe" link in the email.
- By replying to the received email.
- By sending a message to customer service. In the "about us" section of the website www.nude-project.com, there is a direct form to send any questions or comments. There is also a direct email for this purpose, specifically help@nude-project.com.
- By indicating it personally in any of the company's physical stores.

Therefore, we do not find ourselves in the situations regulated in the Judgments where the sanction imposed by the AEPD has been validated.

Fifth.- We also oppose the grading of the sanction contained in the initiation agreement of the sanctioning file, which applies the aggravating factor of intentionality, when in our understanding it is not applicable, and furthermore without considering the other circumstances provided for in Article 40 of Law 34/2002 on Information Society Services and Electronic Commerce.

The existence of intentionality is justified by the fact that commercial communications were sent after obtaining the customer's email address for the purpose of sending them the purchase receipt, and there was no possibility of rejecting the sending of commercial communications when the email is provided. The application of this circumstance is absolutely erroneous since, as has been demonstrated:

- 1) The customer expressly allowed the sending of commercial communications, modifying the corresponding tab of the application at that moment, as they were expressly interested in receiving commercial communications.
- 2) Once the purchase receipt was received, the customer could have easily unsubscribed, just as they could have done when they received the other two communications.
- 3) The complainant themselves unsubscribed on December 20, 2023.

The Judgment of the National Court of June 21, 2023 (EDJ 2023/606757) considers the application of this aggravating factor of intentionality to be correct in cases where a commercial email is sent after the user has expressly stated their opposition, but not in the case at hand.

Moreover, it is true that none of the other circumstances of Article 40 apply to the actions of Nude Project, S.L., specifically:

- The time frame during which the infringement is allegedly committed, which according to the complaint itself is only 8 days.

- Recidivism: Non-existent in this case since Nude Project, S.L. has not been...

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sanctioned for an infringement of the same nature. o Nature and extent of the damages caused. No damages have been caused in this case. o Benefits obtained from the infringement: Nude Project, S.L. has not obtained any benefit since the client did not purchase any item following their purchase on September 23. o The volume of billing is nonexistent. That is to say, in this case, the imposed sanction should have taken into account all of these circumstances, so a sanction of 20,000 euros when the range is between 1 and 30,000 euros seems clearly excessive. This incorrect application constitutes a violation of another constitutional right, namely the principle of proportionality, which has been enshrined as a control instrument for discretionary administrative decisions. It is enshrined in Articles 103.1 and 106 of the Spanish Constitution and in Article 29 of Law 40/2015 on the Legal Regime of the Public Sector. This last article stipulates that the due suitability and necessity of the sanction to be imposed must be observed, and its adequacy to the seriousness of the act constituting the infringement must be based on four criteria: a) Degree of culpability or intent b) Continuity or persistence of the conduct c) The damages caused d) Recidivism. Given all of the above, we understand that the hypothetical sanction should, in any case, be within the lower quartile of the amount proposed in the Regulation.

Sixth.- As a continuation of the previous argument, we invoke the application of Article 39 ter of Law 24/2002 in the sense that we believe there is sufficient data such that, even in the event that the infringement could be understood to have been committed, the sanctioning procedure should be archived and, instead, a warning should be issued with the adoption of corrective measures determined by the competent authority.

In this regard, we indicate that this entity, having gathered recommendations from our advisors on personal data protection, has decided to undertake the following actions aimed at preventing a recurrence of an incident such as the one subject to notification: ☐ We request the aforementioned advisors to provide information on the legal considerations regarding consent in electronic communications.

The statement of objections is accompanied by the following documentation:

- DOCUMENT NO. 1 – Screenshot showing the option to receive advertising unchecked by default.
- DOCUMENT NO. 2 – Screenshot of the claimant's account, indicating that electronic communications can be sent because they have provided their consent, their contact email, and the option to send communications via SMS unchecked.
- DOCUMENT NO. 3 – First communication with the option to unsubscribe.
- DOCUMENT NO. 4 – Withdrawal of consent to receive commercial communications made by the claimant.
- DOCUMENT NO. 5.- Report with considerations on consent in commercial communications.

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DOCUMENT NO. 6 - Screenshot of registration in the system.

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DOCUMENT NO. 7 - Screenshot with the system verification carried out on 21/03/24.

SIXTH: On 30/07/24, a resolution proposal was made suggesting that the Director of the AEPD sanction the complained party for violating the provisions established in Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of the same regulation, with a fine of 20,000 euros (twenty thousand euros).

In FD II of the resolution proposal, a response was provided to the allegations presented regarding the initiation of the file:

First: The complaining party states in their complaint that on 23/09/23, when making a purchase at one of the establishments of the complained entity, they were informed that the physical purchase receipt could not be provided and that they had to provide their email address or phone number. They also indicate that when providing this information on a Tablet at the establishment, at no time did any message or form appear allowing them to oppose receiving advertising, having received up to three advertising emails from the entity without having authorized it. To corroborate this, they attach copies of the three advertising emails received on 23/09/23, 28/09/23, and 01/10/23.

On the other hand, the complained party states in their written allegations regarding the initiation of the file that it is true that the complainant made a purchase in one of their stores on 23/09/23, but that at the time of payment, the cashier informed them that due to the commitment to eliminate paper, the receipt is preferably delivered electronically via email, with the option to provide a physical receipt also available. They assert that the complainant accepted to receive the receipt by email and that when doing so, they were expressly asked if they wished to accept the sending of advertising before opening that tab, which occurred in this case, and they attach the screenshot from the Tablet showing the option to receive advertising unchecked by default; the screenshot of the complainant's account, where the list of purchases is shown, being the only one dated 23/09/23, and on the other hand, the email address: ***EMAIL.1; and a copy of the screen for withdrawing consent to receive commercial communications where the following information appears: Email Unsubscribe: ***EMAIL.1 Unsubscribe Date Dec 20, 2023 at 8:57 pm.

Well then, regarding the consent that the user provides to the data controller for them to send commercial communications, as occurs in this case, Directive 5/2020 on consent in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), establishes, points 105 to 108, the following:

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105. Recital 42 states that: "When processing is carried out with the consent of the data subject, the data controller must be able to demonstrate that the data subject has given consent to the processing operation."

106. Data controllers have the freedom to develop methods that allow them to comply with this provision adapted to their daily operations. At the same time, the obligation to demonstrate that a data controller has obtained valid consent should not in itself lead to excessive additional data processing. This means that controllers should have sufficient data to show a link to the processing (to demonstrate that consent was obtained), but they should not collect more information.

107. It is the responsibility of the controller to demonstrate that valid consent was obtained from the

data subject. The GDPR does not prescribe exactly how this should be done. However, the controller must be able to demonstrate that, in a specific case, a data subject has given their consent. The obligation to demonstrate consent will exist as long as the processing activity of the data in question continues. Once that activity has ended, proof of consent should not be retained longer than strictly necessary to comply with a legal obligation or for the formulation, exercise, or defense of claims, in accordance with Article 17, paragraph 3, letters b) and e).

108. For example, the controller must maintain a record of the consent statements received, so that they can demonstrate how and when consent was obtained, and it must also be demonstrated what information was provided to the data subject at that time. The controller must also be able to demonstrate that the data subject was informed and that the controller's workflow met all relevant criteria for valid consent. The underlying logic of this obligation in the GDPR is that data controllers must be accountable regarding the obtaining of valid consent from data subjects and regarding the consent mechanisms they have adopted. For example, in an online context, a controller could retain information about the session in which consent was expressed, along with documentation about the consent workflow when that session took place, and a copy of the information that was presented to the data subject at that time. It would not be sufficient to refer solely to a correct configuration of the website in question.

The GDPR establishes that consent must be "freely given, specific, informed, and unambiguous." Furthermore, it must provide control to the data subject over it and give them the ability to accept or reject the terms under which it is granted.

Article 7 of the GDPR states that when processing is based on consent, it must be verifiable, and the controller must be able to demonstrate that the data subject provided it validly.

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The GDPR does not establish a specific mechanism regarding how the data controller must be able to prove that valid consent has been obtained, allowing freedom to implement the method of obtaining and recording that best suits the organization's processes. However, at a minimum, they must be able to demonstrate who granted the consent, when, how, and for what purpose, as well as the information provided to them at the time of obtaining it. This obligation persists as long as the processing of personal data continues under the initial conditions in which the data was collected and must be verifiable in the event of an audit or inspection.

Hence, it is of interest to implement tools that provide guarantees to the various parties involved in the consent process and allow them to manage it concerning the processing of personal data being carried out.

Therefore, to assess whether consent is granted in a valid manner, the data controller must maintain a record (log) of the actions taken to obtain consent.

In this case, the entity being complained against only presents a screenshot from a Tablet showing the option to receive advertising unchecked by default; the screenshot of the complainant's account, which shows, on one hand, the list of purchases made and, on the other hand, the complainant's email address, and the screenshot from the Tablet showing the withdrawal of consent to receive commercial communications. However, it does not provide, for example, a history of the "log" that could demonstrate that the interested party granted consent to receive commercial communications validly, or a screen showing the interested party's signature along with their ID number, thereby complying with what is established in the current regulations regarding the obligation of data controllers to demonstrate that they have obtained consent validly.

In summary, on one hand, the complainant, in their complaint letter, states that they received commercial communications from the entity being complained against without prior authorization, thus violating the provisions of Article 21 of the LSSI. On the other hand, from the documentation presented by the entity being complained against in their allegations regarding the initiation of the file, there is no evidence that the interested party granted valid consent to receive commercial communications, as

established in Article 7 of the GDPR.

Second: Regarding the assessment of the sanction in which the aggravating factor of intentionality is applied, it is stated that it does not apply since, according to the entity being complained against, the customer expressly allowed the sending of commercial communications, and once the purchase receipt was received, the customer could perfectly unsubscribe, just as they could do when they received the other two communications, which they did on 20/09/23.

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It is stated that, regarding the fact that the complainant expressly allowed the sending of commercial communications, as outlined in the previous section, in this case, there is no evidence that the complainant clearly expressed consent to receive commercial communications as established by Article 7 of the GDPR. Furthermore, concerning the complainant's ability to easily and directly unsubscribe, both upon receiving the purchase receipt and through the emails received, it should be noted that this file does not address the possibility of opposing the processing of personal data for promotional purposes as established in paragraph 2 of Article 21 of the LSSI, but rather the fact that before being able to exercise their right to oppose receiving advertising, the complainant received advertising emails without having requested or expressly permitted them, as per Article 21.1 LSSI. Therefore, in the case at hand, the application of the burden of existence of intent is considered correct, in the sense that these facts could and should have been avoided by observing and complying with a rule that imposed a duty of care.

The complainant continues to assert that "(...) the imposed sanction should have taken into account all of these circumstances, so a sanction of 20,000 euros when the range is between 1 and 30,000 euros seems excessive (...), thereby violating the principle of proportionality (...)"

Regarding this last point, let us remember that the infringement attributed is classified as "minor" in Article 38.4.d) of the LSSI and that Article 39.1.c) establishes that such infringements may be sanctioned with a fine of up to 30,000 euros. To assess the amount of the sanction, Article 40 LSSI states that this assessment will take into account the following criteria: a) The existence of intent. b) The duration of time during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when declared by a firm resolution. d) The nature and extent of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

On the other hand, Article 29.3 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (RJSP), establishes that,

"(...) in the imposition of sanctions by Public Administrations, the due suitability and necessity of the sanction to be imposed must be observed and its adequacy to the seriousness of the act constituting the infringement (...)"

In our case, it is considered appropriate to adjust the sanction to be imposed in accordance with the existence of intent (paragraph a), as previously outlined, and therefore, it is considered that the amount of the sanction aligns with the proportionality criteria of Article 29 of the LRJSP and 40 of the LSSI.

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the LSSI, without the initially proposed sanction reaching the maximum of the range established for this type of infringement.

The notification of the aforementioned resolution proposal was made in accordance with the rules established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 01/08/24 as recorded in the file.

No response has been received to this resolution proposal.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

First: It has been established that on 23/09/23 the complainant made a purchase at the store of the respondent located in La Roca Village.

Second: It is recorded that the complainant received, at the email ***EMAIL.1 on the days 23/09/23, 28/09/23, and 01/10/23, three emails sent from the address NUDE PROJECT containing messages and advertising photographs in English, such as:

- NUDE PROJECT© Thank you for your purchase! Visit Our store. Order summary ...
- NUDE PROJECT© NEW IN T-SHIRTS HOODIES BOTTOMS
- By Artists, For Artists...
- So, let's play who's who... you choose. Also, we have some last units of new Playboy garments. Have a look. JACK HAB LOW...
- PLAYBOY CARDIGAN PLAYMATE SHIRT PLAYBOY CHINO PANTS SHOP THE LOOK DRAKE...
- CHESS KNITTED POLO POOL DENIM PANTS CHAMPAGNE PROBLEMS HAT NAVY SHOP THE LOOK RIHAN NA...
- WOMEN RACING JACKET BIG HEART WHITE BABY BUNNY BOWLING BAG WHITE/NAVY SHOP THE LOOK LIL NAS X...
- FUTURE MILF HOOD BLACK MILF TEE PINK PLAYBOY STRASS CHOKER SHOP THE LOOK TYLER THE CREATOR...
- Grandma found love in Milano and it ain't no man... She fell in love with the new basics 23' hoodies + polos + crewnecks Now live ...

Third: It is recorded that the respondent, along with their written allegations regarding the initiation of the proceedings, has submitted the following documentation:

- Screenshot from the Tablet showing the option to receive advertising unchecked by default.
- Screenshot of the complainant's account, where the list of purchases made appears, being the only one dated 23/09/23, and on the other hand, the email address: ***EMAIL.1 with the note "notifications will be made in English." It can be seen that the option "subscribed email" is checked and the option to send communications via SMS is unchecked. There is no signature of authorization from the complainant.
- Copy of the screen for withdrawal of consent to receive commercial communications where the following information appears, in English: Email Unsubscribed: ***EMAIL.1 Subscription details Status Unsubscribed or Method Email Link Date Dec 20, 2023, at 8:57 pm UTC. (Email Unsubscribe: ***EMAIL.1 Subscription details Status: Unsubscribed Date Dec 20, 2023)

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as: “f) Commercial communication”: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines “Service of the Information Society” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient, which also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.”

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According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.”

III

Classification of the infringement committed by sending commercial communications without having been requested or expressly authorized.

The fact that the respondent sends advertising emails to the claimant that have not been previously requested or expressly authorized constitutes a violation of what is established in Article 21 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the recipient's contact data and uses it to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.”

IV

Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, while Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions:

“The amount of the fines imposed shall be graduated according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of infringements of the same nature, when declared by a firm resolution. d) The nature and

amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of business affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.”

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the aggravating criteria established by Article 40 LSSI:

- The existence of intent (section a), since, if the client wishes to receive the purchase receipt, they must provide the email address or phone number where it will be sent, but they will also receive commercial communications through that means, even if they do not wish to, as there is no possibility to refuse the sending of commercial communications when providing the email or phone number.

According to these criteria, it is deemed appropriate to propose a sanction of €20,000 (twenty thousand euros) for the infringement of Article 21.1 of the LSSI.

In accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity NUDE PROJECT, S.L. with CIF: B01945328, for the infringement of Article 21 of the LSSI, classified as “minor” in Article 38.4.d), a sanction of €20,000 (twenty thousand euros).

SECOND: TO NOTIFY this resolution to the entity NUDE PROJECT, S.L.

THIRD: TO WARN the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., or otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their

intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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